

INVITATION FOR BIDS

UNARMED SECURITY GUARDS SERVICES

IFB # 26-033



The City of Miramar City Commission:

**Mayor Wayne M. Messam
Vice Mayor Carson Edwards
Commissioner Maxwell B. Chambers
Commissioner Avril K. Cherasard
Commissioner Yvette Colbourne**

**Dr. Roy L. Virgin, City Manager
City of Miramar
2300 Civic Center Place
Miramar, FL 33025**

DATE ISSUED: Thursday, June 04, 2026

OPENING DATE: Thursday, July 2, 2026, at 2:00 PM EST

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**INSTRUCTIONS FOR SUBMITTING A BID
IN RESPONSE TO A
FORMAL INVITATION FOR BID**

**IT IS THE SOLE RESPONSIBILITY OF EACH BIDDER TO
SUBMIT BIDS TO THE CITY OF MIRAMAR, ON/OR BEFORE:**

BIDS DUE: JULY 2, 2026, at 2:00 P.M.

**INSTRUCTIONS FOR SUBMITTING A BID
IN RESPONSE TO A FORMAL
INVITATION FOR BIDS**

**BIDS WILL NOT BE ACCEPTED PERSONALLY OR BY DELIVERY CARRIER. ALL BIDS
MUST BE SUBMITTED VIA DEMANDSTAR.COM**

All Bids must be submitted via Demandstar.com, on replica 8 ½" by 11" paper, neatly typed with normal margins and spacing.

1. All required forms must be notarized, where necessary, by a registered notary, and completed by the Bidder submitting the Bid.
2. All Bids must be signed by an authorized officer of the Bidder who is legally authorized to enter into a contractual relationship with the City.
3. Bidders must include the following information clearly marked on the Bids cover page:
 - a) Bidder's name, return address and telephone number;
 - b) Solicitation number;
 - c) The Solicitation Due Date and Time; and
 - d) Title of the Solicitation.

**BIDDERS WHO FAIL TO INCLUDE THE ABOVE INFORMATION ON THE
FACE OF THEIR BIDS MAY BE DEEMED "NON-RESPONSIVE" AND SUCH
BIDDERS SHALL HAVE NO GROUNDS OF PROTEST IN THE EVENT THEIR
BIDS ARE OPENED IN ERROR.**

THE CITY IS NOT RESPONSIBLE FOR DELAYS CAUSED BY COMPUTER MALFUNCTIONS AND / OR ANY OTHER OCCURRENCE. ANY BID RECEIVED AFTER THE DUE DATE AND TIME STATED IN THE SOLICITATION TIMETABLE IN THIS INVITATION FOR BIDS WILL NOT BE OPENED AND WILL NOT BE CONSIDERED. TELEGRAPHIC OR FACSIMILE BIDS WILL NOT BE CONSIDERED.

THE SUBMITTAL OF A BID BY A BIDDER WILL BE CONSIDERED BY THE CITY AS CONSTITUTING AN OFFER BY THE BIDDER TO PERFORM THE REQUESTED SERVICES AND/OR PROVIDE THE REQUIRED GOODS, AT THE STATED PRICE. NO RESPONSE BY THE CITY SHALL BE CONSIDERED AN ACCEPTANCE UNLESS AND UNTIL A CONTRACT IS EXECUTED BY THE SUCCESSFUL BIDDER AND THE CITY, AND APPROVED AND AUTHORIZED BY THE CITY COMMISSION, IF APPLICABLE. BIDS SHALL BE GUARANTEED TO REMAIN OPEN FOR 180 DAYS FROM THE DUE DATE AND TIME.

END - INSTRUCTIONS TO BIDDERS

SECTION 1

GENERAL TERMS AND CONDITIONS

1-1 DEFINITIONS

1. The term "Bid" shall refer to any offer(s) submitted in response to this Invitation for Bids.
2. The term "Bidder(s)" shall refer to anyone submitting a Bid in response to this Invitation for Bids.
3. The terms "CBE" or "SBE Firm" is defined as a Small Business Enterprise ("SBE") or a County Business Enterprise ("CBE"), which has a Broward County Business Tax Receipt, is located and doing business in Broward County, and certified by the Broward County Office of Economic Development and Small Business Development.
4. The term "Chief Procurement Officer" shall refer to the manager of the City's Procurement Department.
5. The term "City" shall refer to the City of Miramar, Florida, or its City Commission, as applicable.
6. The term "Contract" shall refer to the Contract that may result from this Invitation for Bids.
7. The term "Due Date and Time" shall refer to the due date and time listed in the Solicitation Timetable in Section 2 of this Solicitation.
8. The term "Goods" shall refer to all materials and commodities that will be required to be provided by the Successful Bidder(s) in accordance with the Scope of Work and the Terms and Conditions of this Solicitation.
9. The terms "Invitation for Bids", "IFB" or "Solicitation" shall mean this Invitation for Bids, including all Exhibits and Attachments approved by the City, and amendments or change orders issued by the Procurement Department.
10. The term "Procurement Department" shall refer to the Procurement Department of the City of Miramar.
11. The terms "Subcontractor" and "Subconsultant" shall refer to any person, firm, entity, or organization, other than the employees of the Successful Bidder(s), who contract with the Successful Bidder(s) to furnish labor, or labor and materials, in connection with the Work or Services to the City, whether directly or indirectly, on behalf of the Successful Bidder(s).
12. The term "Successful Bidder(s)" shall refer to the Bidder(s) receiving an award as a result of this Invitation for Bids.
13. The terms "Work", "Services", "Associated Services", "Program", "Project", or "Engagement" shall refer to all matters and things that will be required to be done by the Successful Bidder(s) in accordance with the Scope of Work and the Terms and Conditions of this Solicitation.

1-2 AVAILABILITY OF INVITATION FOR BIDS

Copies of this Solicitation package may be obtained from Demandstar at www.demandstar.com. Bidder(s) are **not** required to register with Demandstar to receive a copy of any City Solicitation. Registration with Demandstar.com is optional, at the sole discretion of the Bidder(s). Bidders choosing to register with Demandstar may do so online at www.demandstar.com. **Note: if you are already registered with Demandstar to receive solicitations from Broward County, you do NOT need to register again.**

Bidders who obtain copies of this Solicitation from sources other than the City's Procurement Department or Demandstar risk the potential of failing to receive amendments since their names will not be included on the list of firms participating in the Solicitation process. Such Bidders are solely responsible for such risks.

To request the Solicitation package from the City's Procurement Department, your request should include the following information: the solicitation number and title; the name of the potential Bidder, as well as the name, email address and telephone number of the potential Bidder's authorized contact person.

1-3 CONE OF SILENCE

Bidders are notified that this Solicitation is subject to a "**Cone of Silence**" Pursuant to Sections 2-421 and 2-422 of the City Code of Ordinances ("Code"), "Cone of Silence" is defined to mean a prohibition on any communication regarding this solicitation between a potential contractor, service provider, bidder, proposer, offeror, lobbyist, or consultant and the City's personnel, including but not limited to the City Manager, member of the City's professional staff, or any member of the selection committee.

The Cone of Silence shall be imposed upon each request for proposal, request for qualifications, request for letters of interest or invitation for bids at the time of short listing by the selection team for responses to the particular solicitation, and for procurements, such as a bid, where a short listing is not created, in which case the cone of silence shall be imposed at the bid opening or at the time responses are received.

This Cone of Silence does not apply to oral communications at pre-proposal conferences; oral presentations before evaluation committees; contract negotiations; public presentations made to the City Commission during any duly noticed public meeting; or communications in writing at any time with any City employee, official, or member of the City Commission regarding matters not concerning this solicitation.

The Cone of Silence shall terminate at the time the City Manager or his or her designee makes a recommendation to the City Commission at a duly scheduled meeting of the City Commission; provided, however, that if the City Commission refers the City Manager's recommendation back to the City Manager or staff for further review, the Cone of Silence shall be re-imposed until such time as the City Manager makes a subsequent recommendation.

1-4 CONTENTS OF SOLICITATION

1. General Conditions.

a) It is the sole responsibility of the Bidder(s) to become thoroughly familiar with the Solicitation requirements and all terms and conditions affecting the performance of this Solicitation. Pleas of ignorance by the Bidder(s) of conditions that exist, or that may exist, will not be accepted as a basis for varying the requirements of the City or the compensation to be paid to the Successful Bidder.

b) The Bidder(s) is advised that this Solicitation is subject to all legal requirements and all other applicable City and County Ordinances and/or state and federal statutes, rules or regulations.

2. Additional Information/Addenda.

1) Requests for additional information, explanation, clarification or interpretation must be made in writing to the Procurement Department via e-mail to the contact person(s) listed in this solicitation. The request shall contain the requester's name, address, and telephone number.

2) The Procurement Department will issue a response to any inquiry it deems necessary, via an addendum, issued prior to the solicitation due date and time. Bidder(s) shall not rely on any representation, statement or explanation other than those made in this solicitation document or in any addenda issued. Where there appears to be a conflict between this Solicitation and any addendum issued, the last addendum issued will prevail.

3) It is the Bidder(s) responsibility to ensure receipt of all addenda and substitute Bid Forms. It is the Bidder(s) further responsibility to verify with the Procurement Department, prior to submitting a Bid, that all addenda have been received. The Bidder(s) shall submit the Bid form entitled "**ADDENDA ACKNOWLEDGMENT FORM**" with their Bids.

3. Conflicts in this Solicitation.

Where there appears to be a conflict between the General Terms and Conditions, the Special Conditions, the Scope of Services, the Sample Contract, or any amendment issued, the order of precedence shall be the last amendment issued; the Scope of Services; the Special Conditions; the General Terms and Conditions, and then the Sample Contract.

Where there appears to be a conflict with the due date and time listed anywhere in this solicitation, it is the sole responsibility of the potential bidder(s) to verify the due date and time.

1-5 PREPARATION AND SUBMISSION OF A BID

a. Preparation

- i) The Bid Forms shall be used when submitting a Bid. Use of any other forms shall result in the Bidder(s) Bid being deemed "Non-Responsive."
- ii) The Bid will either be typed or completed legibly in ink. The Bidder(s) authorized agent will sign the Bid Forms in ink, and all corrections made by the Bidder(s) shall be initialed in ink by the authorized agent. The use of pencil or erasable ink or failure to comply with any of the foregoing may result in the rejection of the Bid.
- iii) Upon request, the City will provide a tax exemption certificate, if applicable.
- iv) Any special tax requirements will be specified either in the Special Conditions or in the Scope of Services.
- vi) A telegraphic or facsimile Bid shall not be considered.
- vii) The apparent silence of the Scope of Services or the omission from the Scope of Services of a detailed description concerning Services requested shall be regarded as meaning that only the best commercial practices are to prevail. All interpretations of the Scope shall be made upon the basis of this Solicitation.
- viii) Vendor Registration is not required.

The city utilizes DemandStar for their vendor registration and vendor database system. Registration with DemandStar is **not** required to submit a Bid.

b. Criminal Conviction Disclosure.

Any individual who has been convicted of a felony during the past ten (10) years and any corporation, partnership, joint venture or other legal entity having an officer, director, or executive who has been convicted of a felony during the past ten (10) years shall disclose this information prior to entering a Contract with or receiving funding from the City. Forms are available from the Procurement Department.

c. Sworn Statement on Public Entity Crimes.

Pursuant to Paragraph 2(a) of Section §287.133, Florida Statutes, "[A] person or affiliate who has been placed on the convicted vendor list following a conviction for a public entity crime may not submit a bid, proposal, or reply on a contract to provide any goods or services to a public entity; may not submit a bid, proposal, or reply on a contract with a public entity for the construction or repair of a public building or public work; may not submit bids, proposals, or replies on leases of real property to a public entity; may not be awarded or

perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity; and may not transact business with any public entity in excess of the threshold amount provided in s. 287.017 for CATEGORY TWO for a period of 36 months following the date of being placed on the convicted vendor list."

d. Preference for CBE or SBE Firms and Local Bidders.

i) Except where federal, state or county Law mandates to the contrary, or as otherwise provided herein, the City, pursuant to its purchasing authority, shall grant a preference in the amount of five percent of any Bid or five points of any Bid score to a CBE or SBE Firm. Such preference shall apply to Bids for commodities, Services and construction.

ii) Except where federal, state or county Law mandates to the contrary, or as otherwise provided herein, the City, pursuant to its purchasing authority, shall grant a preference in the amount of five percent of any Bid or five points of any Bid score to a Local Business. Such preference shall apply to Bids for commodities, Services and construction.

iii) A vendor located outside the City of Miramar City limits is considered equivalent to a Miramar vendor and accorded the same preference if it employs a minimum of 10 full-time equivalent ("FTE") Miramar residents, or its employed Miramar residents constitute 20 percent FTE of the company's local workforce (Broward and Miami-Dade Counties), whichever is larger. Such preference shall apply to Bids for commodities, Services and construction.

e) Application of Preferences.

In the application of any price preference granted by the Miramar Procurement Code or Policies, the preference is applied by granting the specified percent price reduction to the price of the Bidder allowed the preference. Preferences shall be additive and computed on the Bid.

f) Drug-free Workplace Preference

All public Bids are subject to the City of Miramar "Preference to Businesses with Drug-free Workplace Program" Ordinance No. 91-32, which grants a preference to a business with a drug-free workplace program whenever two or more Bids are equal with respect to price, quality, and Services. The drug-free workplace vendor shall have the burden of demonstrating that its program complies with Section §287.087, Florida Statutes, and any other applicable state Law. An announcement of this program may be included with the Bid submittals. All Bidders shall submit the duly signed and notarized Bid Form entitled "**DRUG FREE WORKPLACE AFFIDAVIT.**"

g) Anti-Kickback Affidavit

All Bidder(s) shall submit the duly signed and notarized form entitled “**ANTI-KICKBACK AFFIDAVIT**”.

h) Non-Collusion Affidavit

All Bidder(s) shall affirm that they shall not collude, conspire, connive or agree, directly or indirectly, with any other Bidder(s), firm, or person to submit a collusive or sham Bid in connection with the Work for which their Bid has been submitted; or to refrain from offering in connection with such work; or have in any manner, directly or indirectly, sought by person to fix the price or prices in the Bid or of any other Bidder(s), or to fix any overhead, profit, or cost elements of the Bid price or the Bid price of any other Bidder(s), or to secure through any collusion, conspiracy, connivance, or unlawful agreement any advantage against any other Bidder(s), or any person interested in the proposed work. All Bidder(s) shall submit the duly signed form entitled “**NON-COLLUSION DECLARATION**”.

i) Non-Discrimination Affidavit.

All Bidders shall affirm that their organization shall not discriminate against any person in its operations, activities, or delivery of Services. Bidders shall also affirmatively comply with all applicable provisions of federal, state, and local equal employment Laws and shall not engage in or commit any discriminatory practice against any person on the grounds of sex, race, color, ethnic or national origin, religion, marital status, disability, genetic information, age, political beliefs, sexual orientation, gender, gender identification, social and family background, linguistic preference, pregnancy, and any other legally prohibited basis, or any other factor which cannot be lawfully used as a basis for Service delivery. All Bidders shall submit the duly signed and notarized form entitled “**NON-DISCRIMINATION AFFIDAVIT**.”

j) Living Wage Affidavit

All Bidder(s) shall submit the duly signed and notarized form entitled “**LIVING WAGE COMPLIANCE AFFIDAVIT**”

k) Business/Vendor Profile Survey.

All Bidder(s) shall provide the City with the information requested in the Business/Vendor Profile Survey prior to being recommended for award of any Contract resulting from this Solicitation.

l) Request for Taxpayer Identification Number and Certification.

All Bidder(s) shall provide the City with their Taxpayer Identification Number prior to being recommended for award of any Contract resulting from this Solicitation.

m) Antitrust Laws.

By submission of a signed Bid, the Successful Bidder(s) acknowledges compliance with all antitrust laws of the United States and the State of Florida, to protect the public from restraint of trade, which illegally increases prices.

n) Conflicts of Interest.

The award of the Contract is subject to the provisions of Chapter 112, Florida Statutes. Bidder(s) shall disclose the name of any Officer, Director, Partner, Associate, or Agent who is also an Officer, Appointee, or Employee of the City at the time of the Bid, or at the time of occurrence of the Conflict of Interest thereafter.

o) Collection of Fees, and Taxes.

By acceptance of a Contract, the Successful Bidder(s) acknowledges compliance with the requirement that all delinquent and currently due fees and taxes have been paid. The City may require verification and satisfaction of all delinquencies and currently due fees and taxes prior to recommending a Bidder(s) for the award of any Contract.

1-6 MODIFICATION OR WITHDRAWAL OF A BID

a) Modification of a Bid.

Any modification of a Bid by the Bidder(s) shall be submitted to the Office of the City Clerk prior to the Solicitation Due Date and Time. The Bidder(s) shall submit the new Bid and a letter, on company letterhead, signed by an authorized agent of the Bidder(s) stating that the new submittal supersedes the previously submitted Bid. The sealed envelope shall contain the same information as required for submitting the original Bid. In addition, the envelope shall be marked with a statement that this Bid replaces the previously submitted Bid. No modifications of a Bid shall be accepted after the Solicitation Due Date and Time.

b) Withdrawal of a Bid.

A Bid may be withdrawn only by written communication delivered to the Office of the City Clerk prior to the Solicitation Due Date and Time. A Bid may also be withdrawn after 180 calendar days after the Solicitation Due Date and Time, if it is withdrawn prior to the recommendation for award, by submitting a letter to the Office of the City Clerk at the address identified in this Solicitation. The withdrawal letter must be on company letterhead and signed by an authorized agent of the Bidder(s).

1-7 LATE BIDS, LATE MODIFICATIONS, AND LATE WITHDRAWALS

Bids received after the Solicitation Due Date and Time shall not be accepted, opened, or considered. Modifications of Bids received after the Solicitation Due Date and Time shall also not be accepted or considered. Withdrawals of Bids received after the Solicitation Due Date and Time or prior to the expiration of 180 calendar days after the Solicitation Due Date and Time shall not be accepted or considered.

1-8 SOLICITATION POSTPONEMENT OR CANCELLATION

The City may, in its sole and absolute discretion, reject all, or parts of any and all Bids, re-advertise this Solicitation, postpone or cancel, at any time, this Solicitation process, or waive any irregularities in this Solicitation or in the Bids received as a result of this Solicitation.

1-9 COST OF BIDS

All expenses involved with the preparation and submission of Bids to the City, or any work performed in connection therewith, shall be borne by the Bidder(s). No payment shall be made for any responses received, or for any other effort required of or made by the Bidder(s) prior to commencement of Work as defined by a contract duly approved by the City Commission.

1-10 RECEIPT OF ADDENDA AND SUBSTITUTE BID FORMS

It is the Bidder's responsibility to ensure receipt of all addenda and substitute Bid Forms. It is the Bidder's further responsibility to verify with the Procurement Division, prior to submitting a Bid, that all addenda have been received.

All inquiries regarding this Bid must be written and should be **emailed** to the Procurement contact for this solicitation.

1-11 EXCEPTIONS TO THE SOLICITATION

Bidder(s) may take exception to any of the terms of this Solicitation unless the Solicitation specifically states where exceptions may not be taken. All exceptions taken must be specified in the Bidder(s) cover letter, and shall be referenced by utilizing the corresponding Section, paragraph, and page number in this Solicitation.

Where exceptions are taken, the City, in its sole discretion, shall determine whether to consider the exception and/or the acceptability of the proposed exceptions. The city, after completing the evaluation of the exception, may accept the Bid with the exception, reject the entire Bid due to the exception taken, or deem the Bid Non-Responsive. **BIDDER(S) TAKING EXCEPTIONS ARE SOLELY RESPONSIBLE FOR THIS RISK.**

The city is under no obligation to accept or consider any exceptions or accept any Bid with an exception. Bidder(s) are reminded that they may submit one Bid without exceptions and an alternate Bid with exceptions.

1-12 PROPRIETARY/CONFIDENTIAL INFORMATION

Bidder(s) are notified that all information submitted as part of or in support of Bids will be available for public inspection after opening of the Bids, in compliance with Chapter 119, Florida Statutes, popularly known as the "Public Records Law". Any person wishing to view the Bids in person must make an appointment by calling the Procurement Department at (954) 602-3053.

All Bids submitted in response to this Solicitation become the property of the City. Unless the information submitted is proprietary, copywritten, trademarked, or patented, the City reserves the right to utilize any or all information, ideas, conceptions, or portions of any Bid, in its best interest. Acceptance or rejection of any Bid shall not nullify the City's rights hereunder.

1-13 EVALUATION OF BIDS

a) Rejection of Bid.

1) The city may reject any Bidder's(s') Bid and award to the next lowest responsive, responsible Bidder(s).

or

The city may reject and re-advertise for all or any part of this Solicitation, whenever it is deemed in the best interest of the city. The City shall be the sole judge of what is in its "best interest."

2) The City may reject any Bid if the Bidder(s) does not accept or attempts to modify the terms and conditions of this Solicitation.

b) Elimination from Consideration.

No Contract shall be awarded to any person or firm that is in default to the City because of any debt, taxes, or any other obligation whatsoever.

c) Waiver of Informalities.

The City reserves the right to waive any informalities or irregularities in this Solicitation.

d) Demonstration of Competency.

1) A Bid will only be considered from a firm that is regularly engaged in the business of providing the Goods and/or Services required by this Solicitation. The Bidder(s) must be able to demonstrate a good record of performance and have sufficient financial resources, equipment and organization to ensure that they can satisfactorily provide the Goods and/or Services if awarded the Contract because of this Solicitation.

2) The city may conduct a pre-award inspection of the Bidder's(s') site or hold a pre-award qualification hearing to determine if the Bidder(s) possesses the requirement(s) as outlined in the above paragraph and can perform the requirements of this Solicitation. The City may consider any evidence available regarding the financial, technical or other qualifications and abilities of the Bidder(s), including past performance (experience) with the City or any other governmental entity in making the award of any Contract.

3) The City may require the Bidder(s) to show evidence that it has been designated as an authorized representative of a manufacturer, supplier and/or distributor if required by this Solicitation.

4) The City reserves the right to audit all records pertaining to and resulting from any award because of this Solicitation, financial or otherwise.

1-14 NEGOTIATIONS

Not applicable to this Solicitation.

1-15 AWARD OF A CONTRACT(S)

a) Contract(s).

This Solicitation contains a sample contract. After award, a **similar** contract, inclusive of all attachments and any modifications ***that the City, in its sole discretion, may make***, will constitute the entire contract between the parties. No rights shall inure to the benefit of any Bidder pursuant to this Solicitation until the contract has been executed by both parties.

b) Additional Information.

The award of a contract(s) may be preconditioned on the subsequent submission of other documents as specified in the Special Conditions or Scope of Services. The Successful Bidder(s) shall be deemed "Non-Responsive" if such documents are not submitted in a timely manner and in the form required by the City. Where the Successful Bidder(s) is deemed "Non-Responsive" as a result of such failure to provide the required documents, the City may award any Contract to the next lowest, responsive, responsible Bidder whose bid is in the best interest of the City.

c) Independent Contractor(s).

The Successful Bidder shall be a contractor operating independently from the City. All employees and contractor(s) to the Successful Bidder(s) shall be, always, the sole employees or contractor(s) of the Successful Bidder(s) under its sole discretion and not an employee, contractor(s), or agent of the City. Nor shall employees and contractor(s) to the Successful Bidder(s) enjoy any privity of contract with the City. Neither the Successful Bidder(s) nor any of its employees shall receive any City benefits available to employees of the City. The Successful Bidder(s) shall supply competent and physically capable employees and contractor(s). The city may require the

Successful Bidder(s) to remove any employee or contractor(s) it deems careless, incompetent, insubordinate, or otherwise objectionable and whose continued performance of the Services is not in the best interest of the city. Failure of the Successful Bidder to comply with the City's request will be sufficient cause for the Successful Bidder to be declared in breach of the Contract.

d) Contract Extension.

The City reserves the right to automatically extend any Contract(s) for up to 180 calendar days beyond the stated Contract(s) term, for operational purposes, under the same terms and conditions of said Contract(s). The City shall notify the Successful Bidder(s) in writing of such extensions. Additional extensions beyond the first 180-day extension may occur, if, approved by the City's Commission with the mutual agreement of the city and the Successful Bidder(s).

e) Limited Contract Extension.

Any specific Work assignment which commences prior to the termination date of any Contract(s) and which will extend beyond the termination date shall, unless terminated by mutual written agreement of both parties, continue until completion at the same prices, terms and conditions as set forth in the Contract(s).

f) Non-Exclusive Contract(s).

Although the purpose of this Solicitation is to secure a Contract(s) that can satisfy the total needs of the City, it is agreed and understood that any Contract(s) does not constitute the exclusive rights of the Successful Bidder(s) to receive all orders that may be generated by the City in connection with the types of products and/or Services requested, unless otherwise stated herein.

g) Voluntary Reduction in Price

The City may accept a voluntary reduction from a low Bidder after Bid opening, if such reduction is not conditioned on, nor results in, the modification or deletion of any condition contained in the Invitation for Bids and is determined to be in the best interests of the City. A voluntary reduction may not be used to ascertain the lowest responsive Bid.

1-16 RIGHT OF APPEAL

After a notice of intent to award a Contract is posted, any actual or prospective Bidder who is aggrieved in connection with the pending award of the Contract or any element of the process leading to the award of the Contract may protest to the Chief Procurement Officer. A protest must be filed within five business days after posting or any right to protest is forfeited. The protest must be in writing, must identify the name and address of the protester, and must include a factual summary of and the basis for the protest. Filing shall be considered complete when the protest and accompanying fee is received by the Chief Procurement Officer.

A nonrefundable filing fee from the protester is required to compensate the city for the expenses of administering the protest. The fee shall be in the form of cash or a cashier's check, and in accordance with the schedule provided below:

Contract Award	Amount Filing Fee
\$10,000-\$50,000	\$500.00
\$50,001-\$250,000	\$1,000.00
\$250,001 and greater	1% of the pending award or \$5,000.00, whichever is greater

1-17 BIDDER(S) AND RESULTING SUCCESSFUL BIDDER(S) OBLIGATIONS

- a) Rules, Regulations, Licensing, and Other Requirements.

The Bidder(s) shall comply with all laws and regulations applicable to the Goods and/or Services contained in this Solicitation. The Bidder(s) is presumed to be familiar with all federal, state and local laws, ordinances, codes and regulations that may in any way affect the Goods and/or Services offered.

- b) Conditions of Packaging and Packaging Materials. (N/A for this solicitation)

If applicable, and unless otherwise specified in the Special Conditions or Scope of Services, all containers shall be suitable for shipment and/or storage and recyclable to the greatest extent possible.

1-18 REQUIRED LISTING OF SUBCONTRACTORS AND SUPPLIERS

All Contracts with the City for purchase of supplies, materials, or Services, including professional Services which involve the expenditure of \$25,000 or more, shall require that the Bidder(s) submits with its Bid a listing of all first-tier Subcontractors or Subconsultants who will perform any part of the Contract Work and all suppliers who will supply materials for the Contract Work direct to the Successful Bidder(s). In addition, the Successful Bidder(s) shall not change or substitute Subcontractors, Subconsultants, or suppliers from those listed in the Bid except upon written approval of the City.

All Bidder(s) shall submit the completed Bid form entitled “**BIDDER(S) DISCLOSURE OF SUBCONTRACTORS, SUBCONSULTANTS, AND SUPPLIERS**” with their Bid. **FAILURE TO COMPLY WITH THIS REQUIREMENT SHALL RENDER THE BID NON-RESPONSIVE.**

1-19 COMPLIANCE WITH FEDERAL, STATE AND LOCAL LAWS

The Successful Bidder(s) understands that agreements between private entities and local governments are subject to certain laws and regulations, including laws pertaining to public records, conflict of interest, record keeping, etc. The Successful Bidder(s) agrees to comply with and observe all applicable laws, codes and ordinances as they may be amended from time to time.

1-20 OTHER AGENCIES (PIGGYBACK CLAUSE)

The successful Bidder(s) from this IFB may permit any other municipality or government agency to contract with the Bidder under the same prices, terms, and conditions of the Agreement entered with the City. Any other agency that chooses to piggyback the terms and conditions of this contract shall do so independently and shall be responsible for its own purchases.

1-21 ACCEPTANCE OF CREDIT CARDS

The City of Miramar has implemented a Purchasing Card (P-Card) Program. Vendors must have the capability to accept credit cards for payments or must be willing to take the necessary steps to have the capability to accept credit cards prior to the implementation of this agreement as the city may opt to use the P-Card (SunTrust Mastercard) as its method of payment.

While acceptance of credit cards for payments may be mandatory, this shall not be the City's exclusive method of payment. Contractors shall not charge a surcharge, convenience fee or any other fees associated with the acceptance of payment by the City's P-Card.

1-22 VENDOR REGISTRATION

Vendors who are interested in registering their business with the City of Miramar may do so by visiting the following link: <https://www.miramarfl.gov/189/Vendor-Registration>.

1-23 PROHIBITION AGAINST CONSIDERING SOCIAL, POLITICAL OR IDEOLOGICAL INTERESTS

In accordance with F.S. 287.05701, the City of Miramar does not request documentation of or consider a Bidder's social, political, or ideological interests when determining if the Contractor is a responsible Bidder. Furthermore, the City of Miramar does not give preference to a Bidder based on the Bidder's social, political or ideological interests.

END OF SECTION

SECTION 2 SPECIFIC TERMS AND CONDITIONS

2-1 PURPOSE: TO ESTABLISH A CONTRACT BETWEEN A PROVIDER AND THE CITY OF MIRAMAR FOR SECURITY GUARD SERVICES.

The purpose of this Solicitation is to select a Provider to perform unarmed Security Guard Services according to the Scope of Services set forth herein. The City requests bids from experienced, fully qualified, certified and licensed companies, hereinafter referred to as the "Bidder" to provide the Services described herein.

2-2 SOLICITATION TIMETABLE

The anticipated schedule for this Solicitation and the award of any resulting Contract shall be as follows:

<u>Milestone</u>	<u>Timeframe</u>
IFB Issuance.....	Thursday, June 4, 2026
Non-Mandatory Pre-Bid Conference (Virtual)...	Tuesday, June 16, 2026, at 11:00 AM EST
Deadline for Clarification Questions	Thursday, June 18, 2026
Bids Due on Demandstar.....	Thursday, July 2, 2026, at 2:00 PM EST
Bid Opening (Virtual).....	Thursday, July 2, 2026, at 2:30 PM EST
Award of IFB	TBA

Pre-Bid Meeting (Non-Mandatory)

The City will hold a Non-Mandatory pre-bid meeting (via Webex) at 11:00 a.m. on June 16, 2026. Webex instructions are as follows:

Meeting Information:

Meeting link:

<https://miramarfl.webex.com/miramarfl/j.php?MTID=mf1df8aabfcad0844228876bce83655b2>

Meeting number: 2317 518 8707

Password: J8Upn8M3b3h

Join by video system: Dial [23175188707@miramarfl.webex.com](https://miramarfl.webex.com)

You can also dial: 173.243.2.68 and enter your meeting number

Join by phone: +1-415-655-0001 US Toll

Project Questions:

All questions must be submitted in writing to the City's Procurement Department, 2200 Civic Center Place, Miramar, Florida 33025, by email to: ajbrown@miramarfl.gov, no later than **June 18, 2026.** **Please note that questions submitted after the question submittal deadline of June 18, 2026 may not be answered.**

Webex Opening of Bids Received:

Bids will be opened and read via Webex call at **2:30 P.M. on July 2, 2026.** Webex instructions

are as follows:

Meeting Information:

Meeting link:

<https://miramarfl.webex.com/miramarfl/j.php?MTID=m4bc23b0aa95398833a81af45bcf81bbd>

Meeting number: 2305 290 1299

Password: daT9bFubk67

Join by video system: Dial [23052901299@miramarfl.webex.com](https://miramarfl.webex.com)

You can also dial: 173.243.2.68 and enter your meeting number

Join by phone: +1-415-655-0001 US Toll

2-3 TERM OF CONTRACT

The Contract resulting from this Solicitation shall be for a period of three years, with the option to renew for two additional one-year periods.

In addition to any renewal, the City Manager or his/her designee is authorized to extend, for operational purposes only, for a maximum of 180 days, any Contract entered by the City pursuant to City Commission approval. Any further extensions of such Contract require the approval of the City Commission.

2-4 METHOD OF AWARD

The award of any Contract resulting from this Solicitation will be made to the lowest responsive, responsible Bidder that meets the qualifications and whose Bid will be most advantageous to the City.

2-5 METHOD OF PAYMENT

The Successful Bidder(s) shall submit fully documented invoices within 30 calendar days after the Services have been rendered. These invoices shall be submitted to The City of Miramar, ATTN: Accounts Payable, 2300 Civic Center Place, Miramar, Florida 33025. All documentation shall reference the appropriate Contract number, the type of Service(s) provided, and the dates or period that the Service(s) were provided in the prior 30 days.

2-6 NON-MANDATORY PRE-BID CONFERENCE

See Section 2-2

2-7 INSURANCE

See insurance requirements in Sample Agreement.

2-8 PERFORMANCE BOND BASED ON TOTAL BID PRICE

N/A

2-9 ACCEPTANCE OF GOODS AND SERVICES

The Services shall be performed by the Successful Bidder(s) consistent with the highest professional standards. Any Work not performed as required shall be corrected by the provider to the extent possible at no cost to the City.

An authorized representative of the City will inspect the Services provided under this IFB to determine acceptance of Work, appropriate invoicing and warranty conditions.

END OF SECTION

SECTION 3

SCOPE OF SERVICES AND SPECIAL REQUIREMENTS

3-1

SCOPE OF SERVICES

The City of Miramar is seeking a qualified firm to provide unarmed security guard services at City-owned facilities, specifically, the City's Cultural Center (referred to as "M.C.C.A.") and the City's Multi-Service Complex (referred to as MSC).

It is the intent of the City to provide unarmed security guard services by means of well-trained, experienced, alert, interested, and reliable security guards for protection of personnel/property at specified facilities. The Contractor shall impress upon its personnel that their primary duty and responsibility is to safeguard City employees as well as property in and around City facilities. This general order supersedes all others.

The Contractor's personnel shall act in a courteous and professional manner at all times. The Contractor shall provide appropriately equipped and trained personnel, with background inspections completed according to the City's specified eligibility criteria. The Contractor shall be liable for losses, potential losses or damages arising from the actions of its personnel.

GENERAL DUTIES AND RESPONSIBILITIES

The Contractor shall:

1. Administer and provide security guard services for the M.C.C.A., which shall include, but not be limited to, the main theater, art gallery, banquet hall, kitchen, botanical garden, 1st and 2nd floor studios and administration offices.
2. Administer and provide security guard services for the Multi-Service Complex, which shall include, but not be limited to, staffing the main front desk and periodically patrolling the building, both inside and out on a daily basis.
3. Provide sufficient security to protect all City property and equipment from being damaged, defaced, destroyed or stolen.
4. The successful Bidder shall exercise reasonable care in safeguarding the City property, sites, and buildings while performing unarmed security services, and shall be responsible for losses, damages or claims that arise directly from the Bidder's negligent performance of assigned duties, or failure to take reasonable measures expected of an unarmed security provider. The responsibility extends to acts or omissions within the Contractor's control and does not include acts that could not reasonably have been prevented through standard unarmed security practices.

3-1A LOCATIONS

The Contractor shall provide unarmed security guard services at the following City-owned facilities:

1. Miramar Cultural Center ArtsPark (M.C.C.A.)

2400 Civic Center Place, Miramar, FL 33025

2. Multi-Service Complex (MSC)

6700 Miramar Parkway, Miramar, FL 33023

3-2 SERVICE REQUIREMENTS

The Contractor shall ensure the following Service requirements are met:

1. WORKDAYS AND HOURS

- a. Security guard Service shall be provided for the hours and workdays for each location as noted in this Solicitation.
- b. The Work Schedule shall be as follows:
 - M.C.C.A.: Monday – Sunday, 16 hours per day (2 shifts, 7AM – 3PM, 3PM-11PM)
 - Multi-Service Complex: Monday – Friday 7:30 AM – 6:00 PM

Note: the above schedule does not include City Holidays

2. TRAINING

- a. Contractor shall designate a training officer who shall perform all training for a new security guard assigned to the City.
- b. If a new security guard is provided subsequent to the City-provided training, the Contractor shall ensure the newly assigned security guard is properly trained on City security procedures for a minimum of eight hours and at no additional cost to the City, prior to assigning duty locations.
- c. Training shall include, but not limited to, working on-site at a City security guard post with a guard previously trained by the Contractor.
- d. Once individuals are trained, the same individual shall be utilized and assigned to the same City post areas and given the opportunity to be cross-trained at other security guard posts.

3. SITE-SPECIFIC PROCEDURES

- a. Site-Specific Procedures will be identified and developed jointly by the City and Contractor.

4. SECURITY GUARD DUTIES

- a. The security guards shall perform the following duties among other duties as deemed necessary by the City:
 - Be knowledgeable of the specification requirements and post instructions to ensure strict compliance with the requirements.
 - Ensure door and gates are locked and unlocked as requested by the City.
 - Patrol interior and exterior of buildings, grounds, and City vehicles at random intervals.
 - Report any maintenance problems to the City building facility manager and the City Security Branch so that staff can make entries into the Daily Activity Log.
 - Complete Daily Security Report form(s) and ensure all activity occurring during the shift is recorded to include, but not limited to, any unusual and suspicious activity.
 - Assist the City building facility manager and the City first responders in implementing the City procedures for all fire alarms, bomb threats and other emergencies.
 - Regularly conduct random checks on all boxes and containers taken out of the building to ensure City property is not removed by unauthorized personnel.
 - Maintain contact with designated City staff by phone or two-way radio as established by post instructions to designated dispatcher.
 - Maintain respect for and high level of professionalism toward employees, contractors, and visitors. Maintain a professional and business like demeanor at all times.
 - Be present at assigned duty areas at required times. Security guards shall not leave assigned area unattended until properly relieved. Under no circumstances shall any assigned duty area be left unattended without prior written City approval.
 - Be alert to surrounding area of responsibility at all times.
 - Ensure unauthorized personnel do not enter City grounds and facilities beyond general public access at any time.
 - Avoid using force except when absolute necessary to protect persons and property.
 - Control pedestrian traffic entering and departing the facilities.
 - Enforce a personnel identification system by checking identification badges and/or vehicle parking decal permits, if applicable, and preventing entry of any unauthorized persons and/or vehicles into the facility.
 - Maintain complete and accurate records regarding entry and departure of employees, visitors and vendors on City property.
 - Protect and safeguard materials, data, equipment and City property against loss, theft or damage.

- Provide reports which detail all unusual situations and circumstances to the security personnel's supervisor both verbally and in writing.
- Respond to alarms, suspicious activities, fires, injuries, security incidents or any emergency situations.
- Participate in the initial incident investigations and submitting appropriate detailed reports to the appropriate City staff.
- Patrol on foot within the facility and check designated areas, rooms, materials, equipment, etc.
- Deter intruders and make rounds as required, at times designated. It is necessary that security equipment (fencing, locks, alarms, intrusion devices, etc.) be checked during tours of duty to assure that this equipment has not been tampered with, removed, destroyed, cut, broken or found to be defective in any way.
- Conduct initial investigations into any unusual incidents or occurrences uncovered during a tour of duty and, without undue delay, notify the City site representative or his/her designee and submitting a detailed report to security personnel's supervisor with a copy of the report to the Contract Administrator.
- Attend all court appearances for enforcement actions in which any security guard was involved at no additional cost to the City.
- Contact appropriate departments when incoming mail, fax, or carrier delivery is received at their post. Department personnel will be responsible for receipt of such material.
- Report any hazardous safety condition.
- Monitor all security systems including, but not limited to, burglary, fire, and close circuit television ("CCTV") systems.
- Monitor CCTV monitors for specific buildings and areas (i.e. parking lots) when not performing other duties. The guard shall immediately report any and all suspicious, criminal or unusual activity at any City location to the local police department and the City designated representative.
- Perform any other duties or functions not specifically outlined or set forth above but which are identified as falling within the scope and realm of a security guard's responsibilities.

5. CONTRACT MANAGER DUTIES

a. The Contract Manager shall:

- Maintain continuous awareness of the quality and completeness of the work performed by the security guard personnel.
- Make periodic joint inspection checks on all security guards with the City designated representative on a monthly basis or as requested by the City.

3-3

KEY PERSONNEL QUALIFICATIONS

The Contractor shall provide the following key personnel with the listed qualifications:

1. CONTRACT MANAGER:

The Contract Manager shall have:

- a. A minimum of three years of experience within the last five years in managing security guard personnel.
- b. Extensive knowledge and experience in unarmed security and patrol services procedures. "Extensive knowledge" is defined as a broad knowledge of elements of a job and interrelated business areas to develop or direct the development of new methods, procedures or processes, implement their use and integration into existing programs and assume responsibility for people and its Services.
- c. Specialized training in laws and liabilities, security awareness, mediation and conflict resolution, disaster and emergency situations and managing personnel at various types of facilities.

2. UNARMED SECURITY GUARD(S) QUALIFICATIONS:

Security guard(s) shall have:

- a. A minimum of six (6) months experience with the company, one (1) year experience as a security guard and patrolling services in the field, excluding training, and a current Florida Class D security guard license.
- b. The ability to walk a minimum of 300 yards, climb stairs, and lift and carry 20 pounds.
- c. The physical and mental ability to perform the requirements of this specification.
- d. A high school diploma or GED equivalent.
- e. English language fluency with ability to receive, give, and understand written and verbal instructions and procedures.
- f. The ability to communicate orally and in writing.
- g. Possess proper telephone etiquette answering skills.

3-4

UNIFORMS AND EQUIPMENT

1. The Successful Contractor shall provide the following:
 - a. Labor, uniforms, badges, equipment, materials, supplies, vehicles, training, supervision, and management to satisfactorily perform unarmed security guard services as required by the Contract in compliance with all applicable Florida laws that pertain to the "Security Services" field. A professional appearance and demeanor are vital to a positive first impression.
 - b. One flashlight, reflective, high conspicuity safety vest with "SECURITY" on back, and cold weather apparel for each security guard.

- c. All additional necessary equipment/materials for security guard's use including but not limited to flashlights, clipboards, logbooks, daily activity logs, two-way handheld radio/Cell phone, etc.

2. Security guards shall:

- a. Always be in uniform while on duty. The uniform shall be neat, clean, pressed and kept in good physical condition. Non-company supplied symbols, pins, buttons, or slogans may not be applied to the uniform.
- b. Wear an identifying name badge with the company's logo which shall be clearly visible.
- c. Always maintain a neat and professional appearance.
- d. Carry all equipment necessary in the performance of their duty.

3-5

PERSONNEL REPLACEMENT

1. The City designated representative shall have the final approval as to which security guard may be assigned to City facilities.
2. The City reserves the right to request to remove and replace any security guard or staff who, in the City's sole discretion, does not meet the City professionalism, is not attentive to duty requirements, and who appears incapable of performing assigned duties or is not in compliance with service requirements in this specification or the City post Instructions.
3. Any security guard that the City requests to be removed shall be replaced within two (2) hours during the term of the Contract period as requested by the designated representative of the City.
4. EMERGENCY: The City will require the Contractor to provide additional uniformed security guards personnel at City facilities or facilities under the control of the City during emergency situations, such as a natural disaster, act of terrorism, or a catastrophic event. Additional security guards shall be readily available and on-call for emergency deployment within four (4) hours of telephone notification by the City designated representative.
5. Security guards shall remain on duty and may be required to work up to 12-hour shifts. Security guards may be required to work up to an additional 12 hours during the day or night and on any day of the week.
6. Security guards shall not work more than two consecutive shifts, unless it has been mutually approved by the City and the Contractor.

7. Security guards reporting to work under the influence of alcohol or any illegal substance or out of uniform will not be allowed to stay on duty. The Successful Bidder shall be responsible for the immediate replacement of the guard and shall staff the post until the next scheduled guard arrives for duty.
8. Security guards may be assigned additional duties as designated by the city designated representative, including but not limited to driving, transportation, carrying and lifting objects, protecting designated areas with supplies and materials and other duties as assigned within the scope of specification

3-6

NON-COMPLIANCE WITH WORK HOUR REQUIREMENTS

1. If a Contractor fails to have a security guard on duty at a City-specified work facility at the scheduled time for three occurrences during six-month period, the City may, at its discretion, cancel the Contract due to non-performance.
2. The Successful Contractor must ensure assigned guards are at their designated post at the scheduled time. If a security guard is unable to report to duty as scheduled, the Bidder shall immediately provide a replacement to begin at the designated scheduled time or have the Site Supervisor replace the guard until a replacement arrives for duty.
3. If a designated post is left unguarded, and City personnel should provide coverage and act in the capacity of the guard, the City will have the right to deduct the amount for the City staff's wages and benefits from the monthly invoice or seek reimbursement from the Bidder.
4. Security Guards may not sleep while on duty. If a guard should sleep while on duty at one of the designated posts, the City reserves the right to terminate the Contract.

3-7 BIDDER REQUIREMENTS

The Contractor shall:

1. Have an office located in the Broward or Miami-Dade County. The City has the right to inspect the Bidder's office before or after award. Contractor shall maintain and staff the office 24 hours a day, seven days a week during the term of the Contract and provide a local 24-hour, seven-days-a-week phone number.
2. Be in compliance with Florida Statutes Chapter 493 and all applicable local, state and federal rules and regulations.
3. Have sufficient security staff and security guard personnel to meet City needs during regular scheduled hours and emergency events.

4. Be in good financial standing and shall not be in any form of bankruptcy, current in payment of all taxes and fees and have no other financial difficulties that may prevent Bidder from completing this Service.
5. Agree to have Contract Manager or site supervisor shall return calls within 15 minutes of being contacted by the City designated representative.
6. Not use City employees who may have secondary employment with the Successful Bidder to staff City designated posts.
7. Provide the following security guard types as supplemental personnel beyond the regular fixed schedule, which may include but not be limited to:
 - a. Uniformed unarmed or unarmed patrol guards.
 - b. Uniformed unarmed security guards when requested by the City for special occasions or in emergency situations.
 - c. Security guard site supervisors.
8. Provide the required type of security guards at multiple service facilities at the time requested by the City.
9. Provide proof of valid Florida Class D licenses for all guards assigned to work at City-designated posts and provide background check for guards as requested by the City.
10. Provide the City designated representative the names of all security guard personnel performing under the Contract and provide updated information as changes occur.
11. Ensure security guard(s) are on time and at their scheduled City facility post.
12. Prior to security personnel being assigned to a shift at any City facility, the Contractor shall:
 - a. Submit a letter to the City designated representative verifying each individual assigned meets or exceeds the City's security requirements.
 - b. Ensure that the relevant security guard does not work more than two consecutive shifts either for the City or the City and another client of the contractor, unless otherwise directed or approved by the City representative.
13. Provide staff and personnel with dependable vehicles with company logo at the designated City locations as required for the performance of Services.
14. Meet with the City-designated representative and establish post procedures and instructions for each assigned post.
15. Ensure that any request for changes to post procedures or other special requests for security guards be made in writing. These changes must be approved by the City-designated representative in writing.

16. Correct all discrepancies brought to the attention of the Contractor by the City designated representative within 24 hours.

3-8

ADDITIONAL LOCATIONS

The City reserves the right to add or remove facilities to or from the Contract or adjust the work schedule with 7 days written notice. There may be instances when the City will request the addition or removal of a security guard immediately due to emergency situations.

3-9

CONFIDENTIALITY

City business may not be disclosed to any individual, corporation, news entity or any other government agency at any time without prior written approval of the City.

3-10

CONTRACTOR OR SUBCONTRACTOR MONITORING

During the term of the Contract, the City may or may not have contractors and/or subcontractors working on special projects at City facilities. The City may require that the Successful Contractor:

- a. Provide a security guard to monitor and oversee the contractor and subcontractor personnel while working at designated facilities. The city will provide a minimum of 48 hours' notice to Contractor when additional security will be needed.
- b. If the City requests additional security guards at a facility to monitor a contractor or subcontractor, and the contractor or subcontractor is not at the facility, the City will pay a minimum of two hours of regular time to the Contractor.

3-11

MANAGEMENT AND PERSONNEL

The Contractor shall include the following information in the Bid:

1. Profile of the Firm – State whether your firm is local, national, or international. Additionally, state the following:
 - a. Age and size of the firm and local office.
 - b. Location of the office where the work on this Project is to be performed.
 - c. Number and nature of the staff to be assigned to this Project on a full-time basis (resumes are preferred).
 - d. How long the firm has been operating as the same business entity.

2. Identify the supervisory and management staff who will be assigned to the Project and indicate whether each holds any certifications and licenses applicable to the proposed Project. Provide resumes for each person that will be assigned to this Project.
3. Provide a detailed description of the nature and status of any pending or completed litigation, claims made, investigations and or sanctions by the SEC, MSRB or other similar entities, contract disputes or defaults and liens arising in regard to your company's performance of any services or current or former members of your firm arising (during the tenure at your firm) within the last five years prior to the Due Date of this IFB. If Subcontractors or Subconsultants are utilized, provide similar information for the Subcontractors/Subconsultants.

3-12

SILENCE OF SCOPE OF SERVICES

The apparent silence of the foregoing Scope of Services as to any detail or omission from it as to a detailed description concerning any specifics shall be regarded as meaning that only the best commercial practices are to prevail and that only equipment and workmanship of first quality are to be used. All interpretations of this Scope of Services shall be made upon the basis of this statement.

3-13

MINIMUM QUALIFICATIONS/REQUIREMENTS

In order to be deemed responsive, the Bidder must meet the following minimum qualifications/requirements:

1. The Bidder must possess a valid State of Florida Class B Security Agency license, issued by the Florida Department of Agriculture and Consumer Services, in good standing at the time of Bid submission and throughout the duration of the Contract.
2. The Bidder must have been operating as the same legal business entity for a minimum of five (5) years and be authorized to do business in the State of Florida.
3. The Bidder shall have successfully provided unarmed security guard services under at least three (3) contracts with governmental or public sector entities, comparable in size and scope to the services described herein, within the past five (5) years, demonstrating to the satisfaction of the City that the Bidder is capable of performing the Work being bid on. Each reference must include the client's current mailing address, telephone number, and email address.

For each contract, the Bidder shall submit a Reference Questionnaire Form completed by the client or agency for whom the services were performed. Failure to provide three (3) verifiable references using the Reference Questionnaire Form provided in **Section 4 (Forms and Affidavits)** of this Solicitation will deem the Bid "Non-Responsive."

END OF SECTION

SECTION 4

FORMS AND AFFIDAVITS

BID COVER SHEET – IFB No. 26-033

BIDDER'S NAME (Name of firm, entity, or organization):

FEDERAL EMPLOYER IDENTIFICATION NUMBER:

NAME AND TITLE OF BIDDER'S CONTACT PERSON:

Name:

Title:

MAILING ADDRESS:

Street Address: _____

City, State, Zip: _____

TELEPHONE:

FAX:

()

()

BIDDER'S ORGANIZATION STRUCTURE:

_____ Corporation _____ Partnership _____ Proprietorship _____ Joint Venture _____ Other (explain):

IF CORPORATION:

Date Incorporated/Organized: _____

State of Incorporation/Organization: _____

States registered in as foreign Corporation: _____

BIDDER'S SERVICES OR BUSINESS ACTIVITIES OTHER THAN WHAT THIS SOLICITATION REQUESTS FOR:

LIST NAMES OF BIDDER'S SUBCONTRACTORS AND/OR SUBCONSULTANTS FOR THIS PROJECT:

BIDDER'S AUTHORIZED SIGNATURE:

The undersigned hereby certifies that this Bid is submitted in response to this Solicitation.

Signed by: _____ Date: _____

Print name: _____ Title: _____

**FAILURE TO COMPLETE, SIGN AND RETURN THIS FORM
MAY DEEM YOUR BID NON-RESPONSIVE**

BID PRICE SHEET

COST OR PRICING DATA FOR PRICE BID

Bidders shall submit (attached to this form) Cost or Pricing Data of sufficient detail to allow the evaluators to determine the reasonableness of the Price Bid, reflecting Cost Realism, including all Information other than Cost and Pricing Data and explaining how the lump sum figure was derived.

a) Cost or Pricing Data shall mean all facts that as of the date of submission of the Bid, prudent buyers and sellers would reasonably expect to affect price negotiations significantly. Cost or Pricing Data are data that are factual, not judgmental, and are verifiable. While they do not indicate the accuracy of the Bidder's judgment about estimated future costs or projections, they do include the data forming the basis for that judgment. Cost or Pricing Data are more than historical accounting data, they are all the facts that can be reasonably expected to contribute to the soundness of estimates of future costs and to the validity of determinations of costs already incurred. They also include such factors as: vendor quotations; nonrecurring costs; information on changes in production or purchasing volume; data supporting projections of business prospects and objective and related operations cost; unit-cost trends such as those associated with labor efficiency; make-or-buy decisions; estimated resources to attain business goals; and information on management decisions that could have a significant bearing on costs.

b) Cost Realism shall mean that the costs in a Bidder's Bid are realistic for the Work to be performed, reflect a clear understanding of the requirements, and are consistent with the various elements of the Bidder's Technical Bid.

c) Information other than Cost and Pricing Data shall mean any type of information that is non-numeric that is necessary to determine price reasonableness or Cost Realism.

d) Price, as used in this Solicitation, shall mean cost plus any applicable fee or profit.

BID PRICE SHEET (CONTINUED)

Description

Fees offered below are based on annual projected hours and will be multiplied by the number of years in the contract term for the total contract value. Estimated hours are derived from the work schedules described in Section 3-2 and represent the City's current projected service needs. The City reserves the right to adjust work schedules and total hours as deemed necessary. Bidders must provide an hourly rate for both regular and holiday hours at each location. Extended totals will be calculated by multiplying the estimated hours by the offered hourly rate.

1. MIRAMAR CULTURAL CENTER ARTSPARK (M.C.C.A)

Description	Estimated Hours	Hourly Rate \$	Extended Total \$
Regular Hours (Guard):	5,840		
Holiday Hours (Guard):	192		

2. MULTI-SERVICE COMPLEX (MSC)

Description	Estimated Hours	Hourly Rate \$	Extended Total \$
Regular Hours (Guard):	2,500		
Holiday Hours (Guard):	126		

TOTAL BID AMOUNT (Locations 1 – 2): \$ _____

In Figures

BID PRICE SHEET (CONTINUED)

TAXPAYER IDENTIFICATION NUMBER (TIN): _____

BIDDER'S NAME: _____
(Company Name)

By: _____
(Principal's Signature)

(Printed Name and Title)

**FAILURE TO COMPLETE, SIGN AND RETURN THIS FORM
SHALL DEEM YOUR BID NON-RESPONSIVE**

BIDDER INFORMATION FORM

All information supplied in connection with this form is subject to review and verification. All determinations concerning this information will be used to determine eligibility for participation in the award. Inaccurate or incomplete answers may result in your Bid being deemed "Non-Responsive."

- (1) How many years has your organization been in business under your present business name? _____ years
- (2) State of Florida occupational license type and number: _____
- (3) County (state county) occupational license type and number: _____
- (4) City of Miramar occupational license type and number: _____

(A CITY OF MIRAMAR OCCUPATIONAL LICENSE IS NOT NECESSARY
UNLESS THE BUSINESS IS LOCATED WITHIN THE CITY OF MIRAMAR)

BIDDER(S) MUST INCLUDE A COPY OF EACH LICENSE LISTED WITH BID

- (5) Describe experience providing unarmed security guard services for similar organizations. Include the number of years performing each type of work to demonstrate that the Bidder meets the minimum qualifications set forth in section 3:

- (6) Have you ever had a contract terminated (either as a prime Successful Bidder or sub-Successful Bidder) for failure to comply, breach, or default?

_____ yes _____ no

(IF YES, PLEASE ENCLOSE A DETAILED EXPLANATION ON SEPARATE SHEET)

BID BOND

STATE OF _____)
) ss:
COUNTY OF _____)

KNOW ALL MEN BY THESE PRESENTS that we, _____, as principal, and _____, as Surety, are held and firmly bound unto the City of Miramar ("City"), a municipal corporation of the State of Florida, in the penal sum of _____ Dollars (\$ _____), lawful money of the United States, for the payment of which sum well and truly to be made for "CITY OF MIRAMAR- "UNARMED SECURITY GUARD SERVICES"", we bind ourselves, our heirs, executors, administrators and successors jointly and severally, firmly by these presents.

THE CONDITION OF THIS OBLIGATION IS SUCH that whereas the principal has submitted the accompanying Bid, dated _____, 20____.

For:

NOW, THEREFORE,

- (a) if said Bid shall be rejected, or
- (b) if said Bid shall be accepted and the principal shall properly execute and deliver to City the appropriate Contract Documents and shall in all respects fulfill all terms and conditions attributable to the acceptance of said Bid, then this obligation shall be void. Otherwise, it shall remain in force and in effect, being expressly understood and agreed that the liability of the Surety for all claims hereunder shall in no event exceed the amount of this obligation as herein stated.

The Surety, for value received, hereby agrees that the obligations of said Surety and/or its Bond shall in no way be impaired or affected by any extension of time within which the City may accept such Bid and said Surety does hereby waive notice of any extension.

IN WITNESS WHEREOF, the above bonded parties have executed this instrument under their respective seals this _____ day of _____, 20____, the name and the corporate seal of each corporate party being hereto affixed, and these presents being duly signed by its undersigned representative.

IN PRESENCE OF:

Witness

(Individual or Partnership
Principal)

Witness

(Business Address)

(City, State, Zip)

(Business Phone)

ATTEST:

Secretary

(Corporate Principal) *

By: _____

(Title)

ATTEST:

Secretary

(Corporate Surety) *

*Impress Corporate Seal

By: _____

IMPORTANT: Surety companies executing bonds must appear on the Treasury Department's most current list (Circular 570 as amended) and be authorized to transact business in the State of Florida.

REFERENCE QUESTIONNAIRE

Reference For (Bidder's Name): _____

Agency Giving Reference: _____

Name of Contact Person: _____

Address of Agency Giving Reference: _____

Telephone: _____ Email: _____

Please provide a reference for the above-named firm by indicating below the level of satisfaction (Satisfactory or Unsatisfactory) with services provided to your agency.

	QUESTION	Satisfactory	Unsatisfactory
1	What was your experience with the firm's ability to provide Unarmed Security Guard Services?		
2	Was the firm's staff readily accessible and responsive?		
3	How would you rate the firm's performance with onboarding guards and maintaining post assignments?		
4	Overall, what would you rate the firm's performance?		
5	Would your agency use this firm to provide services again? (Circle One)	YES/ Satisfactory	NO/ Unsatisfactory

Additional Comments: _____

Print Name

Title

Signature

Date: _____

MUST BE SIGNED AND COMPLETED BY PERSON PROVIDING THE REFERENCE

FAILURE TO COMPLETE AND RETURN THIS FORM WILL DEEM YOUR BID NON-RESPONSIVE

BIDDER'S DISCLOSURE OF SUBCONTRACTORS, SUBCONSULTANTS, AND SUPPLIERS

Please list all Subcontractors, Subconsultants and Suppliers to be used in connection with performance of the Contract (use additional pages if necessary):

Company Name: _____

Address: _____

City, State, & Zip Code: _____

Company Name: _____

Address: _____

City, State, & Zip Code: _____

Company Name: _____

Address: _____

City, State, & Zip Code: _____

**FAILURE TO COMPLETE AND RETURN THIS FORM
MAY DEEM YOUR BID NON-RESPONSIVE**

DRUG-FREE WORKPLACE AFFIDAVIT

FLORIDA STATE STATUTE 287.087

Identical Tie Bids: Preference shall be given to business with drug-free workplace programs. Whenever two or more Bids which are equal with respect to price, quality, and service are received by the state or by any political subdivision for the procurement of commodities or contractual Services, a Bid received from a business that certifies that it has implemented a drug-free workplace program shall be given preference in the award process. Established procedures for processing tie Bids will be followed if none of the tied vendors have a drug-free workplace program. To have a drug-free workplace program, a business shall:

- a) Publish a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited in the workplace and specifying the actions that will be taken against employees for violations of such prohibition.
- b) Inform employees about the dangers of drug abuse in the workplace, the business's policy of maintaining a drug-free workplace, any available drug counseling, rehabilitation, and employee assistance programs, and the penalties that may be imposed upon employees for drug abuse violations.
 - 1) Give each employee engaged in providing the commodities or contractual Services that are under Bid a copy of the statement specified in subsection (1).
 - 2) In the statement specified in subsection (1), notify the employees that, as a condition of working on the commodities or contractual Services that are under Bid, the employee will abide by the terms of the statement and will notify the employer of any conviction of, or plea of guilty or nolo contendere to, any violation of chapter 893 or of any controlled substance law of the United States or any state, for a violation occurring in the workplace no later than five days after such conviction.
 - 3) Impose a sanction on or require the satisfactory participation in a drug abuse assistance or rehabilitation program if such is available in the employee's community, by any employee who is so convicted.
 - 4) Make a good faith effort to continue to maintain a drug-free workplace through the implementation of this section.

DRUG-FREE WORKPLACE AFFIDAVIT (CONTINUED)

FLORIDA STATE STATUTE 287.087

As the person authorized to sign this statement, I certify that this firm complies fully with the above requirements.

Vendor's Signature

Print Name

**FAILURE TO COMPLETE, SIGN AND RETURN THIS FORM
MAY DEEM YOUR BID NON-RESPONSIVE**

ANTI-KICKBACK AFFIDAVIT

STATE OF FLORIDA)
) ss:
COUNTY OF BROWARD)

I, the undersigned, hereby duly sworn, depose and say that no portion of the sum herein Bid will be paid to any employees of the City of Miramar, its elected officials, and _____ or its design consultants as a commission, kickback, reward or gift, directly or indirectly by me or any member of my firm or by an officer of the corporation.

By: _____

Title: _____

Sworn and subscribed before this

_____ day of _____, 20____.

Notary Public
State of Florida at Large

My commission expires:

**FAILURE TO COMPLETE, SIGN AND RETURN THIS FORM
MAY DEEM YOUR BID NON-RESPONSIVE**

NON-COLLUSIVE AFFIDAVIT

State of)
) ss:
County of)

_____, being duly sworn, deposes and says that:

a) He/she is the _____ (Owner, Partner, Officer, Representative or Agent) of _____, the Bidder that has submitted the attached Bid.

b) He/she is fully informed respecting the preparation and contents of the attached Bid and of all pertinent circumstances respecting such Bid.

c) Such Bid is genuine and is not collusive or a sham Bid.

d) Neither the said Bidder nor any of its officers, partners, owners, agents, representatives, employees or parties in interest, including this affiant, have in any way colluded, conspired, connived or agreed, directly or indirectly, with any other Bidder, firm, or person to submit a collusive or sham Bid in connection with the Work for which the attached Bid has been submitted; or to refrain from bidding in connection with such Work; or have in any manner, directly or indirectly, sought by person to fix the price or prices in the attached Bid or of any other Bidder, or to fix any overhead, profit, or cost elements of the Bid price or the Bid price of any other Bidder, or to secure through any collusion, conspiracy, connivance, or unlawful agreement any advantage against (Recipient), or any person interested in the proposed Work.

e) The prices quoted in the attached Bid are fair and proper and are not tainted by any collusion, conspiracy, connivance, or unlawful agreement on the part of the Bidder or any other of its agents, representatives, owners, employees or parties in interest, including this affiant.

Signed, sealed and delivered
in the presence of:

Witness By: _____

Witness _____
 (Printed Name)

(Title)

NON-COLLUSIVE AFFIDAVIT (CONTINUED)

ACKNOWLEDGMENT

State of)
) ss:
County of)

BEFORE ME, the undersigned authority, personally appeared _____, to me well known and known by me to be the person described herein and who executed the foregoing Affidavit and acknowledged to and before me that he/she executed said Affidavit for the purpose therein expressed.

WITNESS my hand and official seal this _____ day of _____, 20____.

Notary Public
State of Florida at Large

My commission expires:

**FAILURE TO COMPLETE, SIGN AND RETURN THIS FORM
MAY DEEM YOUR BID NON-RESPONSIVE**

NON-DISCRIMINATION AFFIDAVIT

I, the undersigned, hereby duly sworn, depose and say that the organization, business or entity represented herein shall not discriminate against any person in its operations, activities or delivery of Services under any agreement it enters with the City of Miramar. The same shall affirmatively comply with all applicable provisions of federal, state and local equal employment laws and shall not engage in or commit any discriminatory practice against any person based on sex, race, color, ethnic or national origin, religion, marital status, disability, genetic information, age, political beliefs, sexual orientation, gender, gender identification, social and family background, linguistic preference, pregnancy, and any other legally prohibited basis.

By: _____

Title: _____

Sworn and subscribed before this

_____ day of _____, 20____.

Notary Public
State of Florida at Large

My commission expires:

**FAILURE TO COMPLETE, SIGN AND RETURN THIS FORM
MAY DEEM YOUR BID NON-RESPONSIVE**

BUSINESS/VENDOR PROFILE SURVEY

Name of Business: _____

Address: _____

Phone No.: _____

Contact Person (Regarding This Form): _____

Type of Business (check the appropriate type):

- ☐ **CONSTRUCTION SERVICES** - Firms involved in the process of building, altering, repairing, improving or demolishing any structure, building or real property.
- ☐ **ARCHITECTURE AND ENGINEERING (A&E) SERVICES** - Firms involved in architectural design, engineering services, inspections and environmental consulting (materials and soil testing) and surveying.
- ☐ **PROFESSIONAL SERVICES** - Includes those services that require special licensing, educational degrees, and unusually highly specialized expertise.
- ☐ **BUSINESS SERVICES** - Involves any services that are labor intensive and not a construction related or professional service.
- ☐ **COMMODITIES** - Includes all tangible personal property services, including equipment, leases of equipment, printing, food, building materials, office supplies.
- ☐ A CBE or SBE firm: a Small Business Enterprise (SBE) or a County Business Enterprise (CBE), has a Broward County Business Tax Receipt, is located in, and doing Business in Broward County, and certified by the Broward County Office of Economic Development and Small Business Development.

Business is claiming the CBE/SBE Preference; YES _____ NO _____

Please attach the Broward County Office of Economic Development and Small Business Development certification to this form.

**Business is claiming local Business Preference YES _____ NO _____
(Choose below as applicable)**

- ☐ **Businesses Employing Miramar Residents** - Business is located outside of the City of Miramar City limits and employs a minimum of 10 full time equivalent ("FTE") Miramar residents, or Miramar residents constitute 20 % of the FTE of the company's local workforce (in Broward and Miami-Dade Counties), whichever is larger.

Business Employing Miramar Residents Affidavit MUST be submitted with Bid.

- ☐ Business with a location within Miramar, is following all City licensing requirements and is current on all City taxes.

Attach a copy of a current Miramar Business Tax Receipt to this form.

**FAILURE TO COMPLETE AND RETURN THIS FORM
MAY DEEM YOUR BID "NON-RESPONSIVE"**

BUSINESS EMPLOYING MIRAMAR RESIDENTS AFFIDAVIT

The completed and signed form must be returned with the Vendor's submittal **ONLY** if the Vendor is claiming the Business Employing Miramar Residents preference.

Vendor: _____

Address: _____

Telephone Number: _____ E-Mail Address: _____

Solicitation No. and Title: _____

By signing below, I hereby certify that Vendor has _____ total employees in local workforce (Miami Dade and Broward Counties), of which _____ are full time equivalent Miramar residents.

Signature Title Date

SWORN TO AND SUBSCRIBED BEFORE ME this ____ day of ____, 20__

STATE OF _____

COUNTY OF _____

Notary Public (Sign name of Notary Public)

My commission expires: _____ (SEAL)

Personally Known _____ or Produced Identification _____

Type of Identification Produced _____

FAILURE TO COMPLETE THIS FORM MAY DEEM YOUR BID NON-RESPONSIVE
END OF DOCUMENT

**Request for Taxpayer
Identification Number and Certification**

Go to www.irs.gov/FormW9 for instructions and the latest information.

Give form to the
requester. Do not
send to the IRS.

Before you begin. For guidance related to the purpose of Form W-9, see *Purpose of Form*, below.

Print or type. See Specific Instructions on page 3.	1 Name of entity/individual. An entry is required. (For a sole proprietor or disregarded entity, enter the owner's name on line 1, and enter the business/disregarded entity's name on line 2.)	
	2 Business name/disregarded entity name, if different from above.	
	3a Check the appropriate box for federal tax classification of the entity/individual whose name is entered on line 1. Check only one of the following seven boxes. ☐ Individual/sole proprietor ☐ C corporation ☐ S corporation ☐ Partnership ☐ Trust/estate ☐ LLC. Enter the tax classification (C = C corporation, S = S corporation, P = Partnership) Note: Check the "LLC" box above and, in the entry space, enter the appropriate code (C, S, or P) for the tax classification of the LLC, unless it is a disregarded entity. A disregarded entity should instead check the appropriate box for the tax classification of its owner. ☐ Other (see instructions)	4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3): Exempt payee code (if any) _____ Exemption from Foreign Account Tax Compliance Act (FATCA) reporting code (if any) _____ (Applies to accounts maintained outside the United States.)
	3b If on line 3a you checked "Partnership" or "Trust/estate," or checked "LLC" and entered "P" as its tax classification, and you are providing this form to a partnership, trust, or estate in which you have an ownership interest, check this box if you have any foreign partners, owners, or beneficiaries. See instructions ☐	
	5 Address (number, street, and apt. or suite no.). See instructions.	Requester's name and address (optional)
	6 City, state, and ZIP code	
	7 List account number(s) here (optional)	

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. See also *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number	
OR	
Employer identification number	

Part II Certification

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
2. I am not subject to backup withholding because (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
3. I am a U.S. citizen or other U.S. person (defined below); and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and, generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign Here	Signature of U.S. person	Date

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to www.irs.gov/FormW9.

What's New

Line 3a has been modified to clarify how a disregarded entity completes this line. An LLC that is a disregarded entity should check the appropriate box for the tax classification of its owner. Otherwise, it should check the "LLC" box and enter its appropriate tax classification.

New line 3b has been added to this form. A flow-through entity is required to complete this line to indicate that it has direct or indirect foreign partners, owners, or beneficiaries when it provides the Form W-9 to another flow-through entity in which it has an ownership interest. This change is intended to provide a flow-through entity with information regarding the status of its indirect foreign partners, owners, or beneficiaries, so that it can satisfy any applicable reporting requirements. For example, a partnership that has any indirect foreign partners may be required to complete Schedules K-2 and K-3. See the Partnership Instructions for Schedules K-2 and K-3 (Form 1065).

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS is giving you this form because they

LIVING WAGE COMPLIANCE AFFIDAVIT

The completed and signed form must be returned with the Vendor's submittal. **Vendor may be deemed non-responsive for failure to submit this form.**

Company: _____
Address: _____
Telephone Number: _____ E-Mail Address: _____

By signing below, I hereby certify that the covered employees listed below (please check one):

- A. ☐ Receive a minimum pay of \$ ____ per hour and are provided health benefits valued at \$ ____ per hour
B. ☐ Receive a minimum pay of \$ ____ per hour and are not provided health benefits.

Provide names of hourly employees providing covered services and their job classifications for the above referenced contract.

Name	Job Class	A or B	Name	Job Class	A or B
_____	_____	_____	_____	_____	_____
_____	_____	_____	_____	_____	_____
_____	_____	_____	_____	_____	_____
_____	_____	_____	_____	_____	_____

(Attach additional sheets in the format above, if needed)

I, _____ of _____, hereby attest that
(Print Name) (Company)

(1) I have the authority to sign this notarized compliance affidavit, (2) the following information is true, complete and correct, and (3) the Vendor certifies that it shall:

- I. Pay all employees working on this contract/project, who are covered by the Living Wage Requirement set forth in the Solicitation, in accordance with wage rates and provisions of the Living Wage Requirement in the Solicitation;
- II. Upon request of the City, provide all documents and payroll records demonstrating compliance with the living wage requirements; and
- III. (IF APPLICABLE) If health care benefits are provided under "A" above, the health care benefit meets the standard health benefit plan as described in Section 627.6699 (12)(b)(4), Florida Statutes, as amended. As a principle officer of the covered employer, the undersigned affirms that the referenced Florida Statute has been reviewed and the covered employer's health plan meets all the elements required by the statute, as amended.

Signature

Title

LIVING WAGE COMPLIANCE AFFIDAVIT (CONTINUED)

SWORN TO AND SUBSCRIBED BEFORE ME this ____ day of _____, 20____

STATE OF _____

COUNTY OF _____

Notary Public (Sign name of Notary Public)

My commission expires: _____ (SEAL)

Personally Known ☐ or Produced Identification ☐

Type of Identification Produced _____

**FAILURE TO COMPLETE, SIGN AND RETURN THIS FORM
MAY DEEM YOUR BID NON-RESPONSIVE**

SAMPLE AGREEMENT

BETWEEN

THE CITY OF MIRAMAR

AND

FOR

UNARMED SECURITY GUARD SERVICES

This Agreement (or "Contract") is entered into this ____ day of _____, 2026, by and between the City of Miramar, Florida, a Florida municipal corporation, hereinafter referred to as "City",

AND

_____, a _____ corporation with its principal business address located at _____, hereinafter referred to as "Contractor".

WHEREAS, on _____, 2026 the City issued Invitation for Bid No. 26-033 ("IFB") for UNARMED SECURITY GUARD SERVICES; and

WHEREAS, the Contractor was determined to be the lowest responsive, responsible Bidder and whose Bid was most advantageous to the City for Service; and

WHEREAS, on _____, 2026, the City Commission approved the award of the IFB to Contractor and authorized the execution of the appropriate Agreement between the City and the Contractor for provision of services, for an initial term of three years with the option to renew for two additional one-year terms.

NOW, THEREFORE, in consideration of the mutual terms and conditions, promises, and covenants hereinafter set forth, City and Contractor agree as follows:

ARTICLE 1 **SCOPE OF SERVICES**

Contractor agrees to provide the following Services to the City (the "Services") during the Term of this Agreement:

This Agreement is subject to, and Contractor shall provide Services in accordance with the Scope of Services, terms, conditions and requirements of City of Miramar Invitation for Bid ("IFB"), the Contractor's Bid, as accepted by the City, and any subsequently

negotiated changes to same, which documents or agreements are incorporated by reference herein. In the case of any conflict between the provisions of this Contract, the Bid and the Bid Response, the conflict shall be resolved in the following order of priority: terms of this Contract; terms of the Bid; terms of the Bid Response.

Contractor represents and warrants to the City that: (i) it possesses all qualifications, licenses and expertise required for the performance of the Services; (ii) it is not delinquent in the payment of any sums due the City; (iii) all personnel assigned to perform the Services are and shall be, at all times during the term hereof, fully qualified and trained to perform the tasks assigned to each; and (iv) the Services will be performed in the manner described in Attachment "A".

Estimates/Quotations:

All requests for related Services estimates/quotations not covered under this Agreement shall be submitted in writing prior to any Work being undertaken or approved. The estimate must include a detailed list of the Work to be completed, listed item by item, and location where Work is to be performed. Estimates/quotations are to be submitted electronically, if desired, to the City to secure purchase order approval prior to the Work being performed, and such Work shall not exceed 15% of the annual Contract for Services.

Purchase Orders:

1. The Contractor shall not perform or begin any Work without prior written authorization from the City, as well as an approved purchase order authorizing Services.
2. Failure of the Contractor to adhere to the City's purchasing protocol – working without having an official City purchase order for the Work, shall constitute a default and authorization for payment shall be denied.

ARTICLE 2 **COMPENSATION**

The Contractor shall submit periodic invoices for the Goods and Services provided to the City of Miramar, ATTN: Accounts Payable, 2300 Civic Center Place, Miramar, FL 33025. The date of the invoice shall not exceed 30 calendar days from the date of acceptance of the Goods and Services by the City. Under no circumstance shall an invoice be submitted to the City in advance of the delivery and acceptance of the commodities and/or Services, unless otherwise agreed to. All invoices shall reference the appropriate Contract number, the address where the commodities were delivered or the Services performed, and the corresponding acceptance slip that was signed by an authorized representative of the City when the Goods and/or Services were delivered and accepted. Payment by the City shall be made within 30 days after receipt of Contractor's invoice, which shall be accompanied by sufficient supporting documentation and contain sufficient detail to allow a proper audit of expenditures should the City require one to be performed.

ARTICLE 3
TERM OF AGREEMENT

The term of this Agreement shall commence upon the date this Contract is executed by both parties and shall be for a term of three years, with the City having the option to renew the Agreement, on an annual basis, for up to two additional one-year renewal terms, unless terminated earlier pursuant to Article 4 of this Agreement. The Chief Procurement Officer may authorize up to a 90-day extension of this Contract in accordance with its terms and conditions, and the City Manager or designee is authorized to extend this Agreement, for operational purposes only, for an additional 90 days, for a maximum of 180 days.

ARTICLE 4
TERMINATION OF AGREEMENT

City may terminate this Agreement for convenience by giving the Contractor 30 calendar days written notice. City may terminate this Agreement for cause by giving the Contractor five calendar days written notice upon the failure of Contractor to cure any default after being provided with notice of that default and a demand for cure within ten (10) calendar days. The termination of this Agreement shall not relieve either party of any liability that accrued prior to such termination and any such accrued liability shall survive the termination of this Agreement

ARTICLE 5
INDEPENDENT CONTRACTOR

Contractor is an independent contractor under this Agreement. Services provided by Contractor shall be by employees of Contractor and subject to supervision by Contractor, and not as officers, employees or agents of City. Personnel policies, tax responsibilities, social security, health insurance, employee benefits, travel, per diem policy, and purchasing policies under the Agreement shall be the sole responsibility of Contractor. Contractor shall have no rights under the City's worker's compensation, employment, insurance benefits or similar laws or benefits.

ARTICLE 6
INDEMNIFICATION / HOLD HARMLESS CLAUSE

Contractor shall indemnify, defend and hold harmless City, its officials, agents, employees, and volunteers from and against any and all liability, suits, actions, damages, costs, losses and expenses, including attorneys' fees, demands and claims for personal injury, bodily injury, sickness, diseases or death or damage or destruction of tangible property or loss of use resulting therefrom, arising out of any errors, omissions, misconduct or negligent acts of Contractor, its respective officials, agents, employees or subcontractors in the Contractor's performance of Services pursuant to this Agreement.

ARTICLE 7
NON-APPROPRIATION OF FUNDS

In the event no funds or insufficient funds are appropriated and budgeted or are otherwise unavailable in any fiscal year for payments due under this Agreement, then the City, upon written notice to Contractor of such occurrence, shall have the unqualified right to terminate this Agreement without any penalty or expense to the City.

ARTICLE 8
INSURANCE

8.1 INSURANCE - For programs that are active in nature, which shall be determined in the sole and exclusive discretion of the City, Contractor shall maintain commercial general, automobile (where applicable), workers' compensation and professional liability insurance in an amount acceptable to the City's Risk Manager.

8.2 Minimum Limits of Insurance - Contractors shall maintain the following minimum limits of insurance (unless higher limits are required by law or statute):

1. Commercial General Liability: \$1,000,000 Combined Single Limit per occurrence, property damage and medical expense \$10,000, personal injury and advertising injury liability \$1,000,000; products and completed operations policy aggregate \$2,000,000 and general aggregate \$2,000,000.
2. Employer's Liability: \$1,000,000 per accident for bodily injury by accident or disease.
3. Workers' Compensation: Statutory.

8.3 Required Insurance Endorsements - The City requires the following insurance endorsements:

1. ADDITIONAL INSURED - The City must be included as an additional insured by policy endorsement under Commercial General Liability policy for liability arising from Services provided by or on behalf of the Contractor.
2. WAIVERS OF SUBROGATION - Contractor agrees to waive all rights of subrogation by policy endorsement against the City for loss, damage, claims, suits or demands, regardless of how caused:
 - a. To property, equipment, vehicles, laptops, cell phones, etc., owned, leased or used by the Contractor or the Contractor's employees, agents or Subcontractors; and
 - b. To the extent such loss, damage, claims, suits or demands are covered, or should be covered, by the required or any other insurance (except professional liability to which this requirement does not apply) maintained by the Contractor.

This waiver shall apply to all first-party property, equipment, vehicle and worker's compensation claims, and all third-party liability claims, including deductibles or retentions which may be applicable thereto. If necessary, the Contractor agrees to endorse the required insurance policies to acknowledge the required waivers of subrogation in favor of the City. Contractor further agrees to hold harmless and indemnify the City for any loss or expense incurred as a result of Contractor's failure to obtain such waivers of subrogation from Contractor's insurers.

This Agreement shall not be deemed approved until the Contractor has obtained all insurance required under this section and has supplied the City with evidence of such coverage in the form of a Certificate of Insurance with additional insured and waiver of subrogation endorsements for policies as stated in the required insurance endorsement section above. The City shall be named as additional insured in all of Contractor's liability insurance policies. The City shall approve such Certificates prior to the performance of any Services pursuant to this Agreement.

8.4 ALL INSURANCE COMPANIES PROVIDED SHALL: Be rated at least A VII per Best's Key Rating Guide and be licensed to do business in Florida. The Contractor's liability insurance shall be primary to any liability insurance policies that may be carried by the City. The Contractor shall be responsible for all deductibles and self-insured retentions on their liability insurance policies.

8.5 All of the policies of insurance so required to be purchased and maintained shall contain a provision or endorsement that the coverage afforded shall not be cancelled, materially changed or renewal refused until at least 30 calendar days' written notice has been given to the City by certified mail.

ARTICLE 9

MISCELLANEOUS

9.1 Contractor shall, without additional expense to the City, be responsible for paying any taxes, obtaining any necessary licenses and for complying with all applicable federal, state, county, and municipal laws, ordinances and regulations in connection with the performance of the Services specified herein.

9.2 Precautions shall be always exercised for the protection of persons and property. The Contractor and all Subcontractors shall conform to all OSHA, federal, state, county, and City regulations while performing under the terms and conditions of this Agreement. Any fines levied by the above-mentioned authorities because of failure to comply with these requirements shall be borne solely by the Contractor responsible for the same.

ARTICLE 10

AUDIT AND INSPECTION RIGHTS

10.1 The City may, at reasonable times, and for a period of up to three years following the date of final performance of Services by Contractor under this Agreement, audit, or cause to be audited, those books and records of Contractor which are related to Contractor's performance under this Agreement. Contractor agrees to maintain all such

books and records at its principal place of business for a period of three years after final payment is made under this Agreement.

10.2 The City may, at reasonable times during the term hereof, perform such inspections as the City deems reasonably necessary to determine whether the Services required to be provided by Contractor under this Agreement conform to the terms of this Agreement. Contractor shall make available to the City all reasonable assistance to facilitate the performance of inspections by the City's representatives.

ARTICLE 11 **AMENDMENTS AND ASSIGNMENT**

11.1 This Agreement constitutes the entire agreement between Contractor and City and all negotiations and oral understandings between the parties are merged herein. The terms and conditions set forth in this Agreement supersede all previous agreements, promises, negotiations or representations. Any other agreements, promises, negotiations or representations not expressly set forth in this Agreement are of no force and effect.

11.2 No modification, amendment or alteration of the terms and conditions contained herein shall be effective unless contained in a written document executed with the same formality as this Agreement.

11.3 Contractor shall not transfer or assign the performance of Services set forth in the Agreement without the prior written consent of the City, which may be withheld or conditioned in the City's sole discretion.

ARTICLE 12 **GOVERNING LAW AND VENUE**

This Agreement shall be construed in accordance with and governed by the laws of the State of Florida. Venue for any action arising out of or relating to this Agreement shall be in Broward County, Florida.

ARTICLE 13 **NOTICES**

Whenever either party desires to give notice to the other, it must be given by written notice, sent by certified United States mail, return receipt requested, addressed to the party for whom it is intended, at the place last specified in writing as the place for giving of notice in compliance with the provisions of this paragraph. For the present, the parties designate the following as the respective places for giving of notice:

FOR CONTRACTOR:

FOR CITY:

City Manager
City of Miramar
2300 Civic Center Place
Miramar, Florida 33025
Telephone: (954) 602-3117

With A Copy to:

Burnadette Norris-Weeks, Esq.
City Attorney
Austin Pamies Norris Weeks Powell, PLLC
401 North Avenue of the Arts
Fort Lauderdale, FL 33311
Telephone: (954) 768-9770
Facsimile: (954) 768-9790

ARTICLE 14
NON-DISCRIMINATION

Contractor represents and warrants to the City that Contractor does not and will not engage in discriminatory practices and that there shall be no discrimination in connection with Contractor's performance under this Agreement on account of race, age, religion, color, gender, sexual orientation, national origin, marital status, physical or mental disability, political affiliation or any other factor that cannot be lawfully used as a basis for delivery of Services. Contractor further covenants that no otherwise qualified individual shall, solely by reason of his/her sex, race, color, ethnic or national origin, religion, marital status, disability, genetic information, age, political beliefs, sexual orientation, gender, gender identification, social and family background, linguistic preference, pregnancy, and any other legally prohibited basis, be excluded from participation in, be denied Services, or be subject to discrimination under any provision of this Agreement.

ARTICLE 15
PUBLIC RECORDS

- A. Public Records: CONTRACTOR shall comply with The Florida Public Records Act as follows:
1. Keep and maintain public records that ordinarily and necessarily would be required by CITY to perform the service.
 2. Upon request by CITY's records custodian, provide CITY with a copy of requested records or allow the records to be inspected or copied within a reasonable time at a cost that does not exceed the cost provided in Chapter 119, Florida Statutes, or as otherwise provided by law.

3. Ensure that public records that are exempt or confidential and exempt from public records disclosure requirements are not disclosed except as authorized by law for the duration of this Agreement.
4. Upon completion of this Agreement or in the event of termination of this Agreement by either party, any or all public records relating to this Agreement in the possession of CONTRACTOR shall be delivered by CONTRACTOR to CITY, at no cost to CITY, within seven days. All records stored electronically by CONTRACTOR shall be delivered to CITY in a format that is compatible with CITY's information technology systems. Once the public records have been delivered to CITY upon completion or termination of this Agreement, CONTRACTOR shall destroy all duplicate public records that are exempt or confidential and exempt from public record disclosure requirements.
5. CONTRACTOR'S failure or refusal to comply with the provisions of this Section shall result in the immediate termination of this Agreement by the CITY.

IF CONTRACTOR HAS QUESTIONS REGARDING THE APPLICATION OF CHAPTER 119, FLORIDA STATUTES, TO CONTRACTOR'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS AGREEMENT, CONTACT THE CUSTODIAN OF PUBLIC RECORDS AT 954-602-3011, OR BY MAIL: City of Miramar – City Clerk's Office, 2300 Civic Center Place, Miramar, FL 33025.

- B. Ownership of Documents: Unless otherwise provided by law, all reports, surveys, and other data and documents provided or created in connection with this Agreement are and shall remain the property of CITY. Any compensation due to CONTRACTOR shall be withheld until all documents are received as provided herein.

ARTICLE 16
SCRUTINIZED COMPANY

- A. Contractor certifies that it and its subcontractors are not on the Scrutinized Companies that Boycott Israel List. Pursuant to Section 287.135, F.S., the City may immediately terminate this Agreement at its sole option if the Contractor or its subcontractors are found to have submitted a false certification; or if the Contractor, or its subcontractors are placed on the Scrutinized Companies that Boycott Israel List or is engaged in the boycott of Israel during the term of the Agreement.
- B. If this Agreement is for more than one million dollars, the Contractor certifies that it and its subcontractors are also not on the Scrutinized Companies with Activities in Sudan, Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List, or engaged with business operations in Cuba or Syria as identified in Section 287.135, F.S. Pursuant to Section 287.135, F.S., the City may immediately

terminate this Agreement at its sole option if the Contractor , its affiliates, or its subcontractors are found to have submitted a false certification; or if the Contractor, its affiliates, or its subcontractors are placed on the Scrutinized Companies with Activities in Sudan List, or Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List, or engaged with business operations in Cuba or Syria during the term of the Agreement.

- C. The Contractor agrees to observe the above requirements for applicable subcontracts entered into for the performance of work under this Agreement.
- D. As provided in Subsection 287.135(8), F.S., if federal law ceases to authorize the above-stated contracting prohibitions then they shall become inoperative.

ARTICLE 17 **E-VERIFY**

In accordance with Florida Statutes §448.095, the Service Provider, prior to commencement of services or payment by the City, will provide to the City proof of participation/enrollment in the E-Verify system of the Department of Homeland Security. Evidence of participation/enrollment will be a printout of the Company's "Company Profile" page from the E-Verify system. Failure to be continually enrolled and participating in the E-Verify program will be a breach of contract which will be grounds for immediate termination of the contract by the City. The Service Provider will not hire any employee who has not been vetted through E-Verify. The Service Provider may not subcontract any work for the City to any subcontractor that has not provided an affidavit stating that the subcontractor does not employ, contract with or subcontract with an unauthorized alien.

ARTICLE 18 **HEADINGS, CONFLICT OF PROVISIONS,** **WAIVER OR BREACH OF PROVISIONS**

Headings are for convenience of reference only and shall not be considered in any interpretation of this Agreement. In the event of conflict between the terms of this Agreement and any terms or conditions contained in any attached documents, the terms in this Agreement shall prevail. No waiver or breach of any provision of this Agreement shall constitute a waiver of any subsequent breach of the same or any other provision, and no waiver shall be effective unless made in writing.

ARTICLE 19 **SEVERABILITY**

If any provision of this Agreement or the application thereof to any person or situation shall to any extent be held invalid or unenforceable, the remainder of this Agreement and the application of such provisions to persons or situations other than those as to which it shall have been held invalid or unenforceable shall not be affected thereby, and shall continue in full force and effect and be enforced to the fullest extent permitted by law.

ARTICLE 20
SURVIVAL

All representations and other relevant provisions herein shall survive and continue in full force and effect upon termination of this Agreement.

ARTICLE 21
ENTIRE AGREEMENT

This Agreement represents the entire and integrated Agreement between the City and Contractor and supersedes all prior negotiations, representations or agreements, whether written or oral.

ARTICLE 22
JOINT PREPARATION

The parties acknowledge that they have sought and received whatever competent advice and counsel as was necessary for them to form a full and complete understanding of all rights and obligations herein, and that the preparation of this Agreement has been a joint effort of the parties, the language has been agreed to by the parties to express their mutual intent, and the resulting document shall not, solely as a matter of judicial construction, be construed more severely against one of the parties than the other.

IN WITNESS WHEREOF, the parties hereto have made and executed this Agreement on the respective dates under each signature: City, signing by and through its City Manager, attested to and duly authorized to execute same by the City Commission of the City of Miramar, and by the Contractor, by and through its _____, attested to and duly authorized to execute same.

CITY

ATTEST:

CITY OF MIRAMAR

City Clerk

By: _____
Dr Roy L. Virgin, City Manager

This ____ day of _____, 2026.

APPROVED AS TO FORM AND LEGAL
SUFFICIENCY FOR THE USE OF AND
RELIANCE BY THE CITY OF MIRAMAR
ONLY:

Austin Pamies Norris Weeks Powell, PLLC
City Attorney

CONTRACTOR

WITNESSES:

Print Name: _____

Print Name: _____

By: _____

Date: _____